

Amendment No. 1 to HB2215

Todd
Signature of Sponsor

AMEND Senate Bill No. 2597

House Bill No. 2215*

by deleting all language after the caption and substituting:

WHEREAS, the feeding of bears habituates wildlife to human food sources, increases aggressive bear behavior, and creates significant risks to public safety, property, and the welfare of the bears themselves; and

WHEREAS, individuals who intentionally feed bears or leave food or garbage unsecured, accessible, or in a manner that attracts bears contribute to conditions that constitute reckless endangerment to residents, visitors, and first responders; and

WHEREAS, it is the intent of this body that this legislation addresses the feeding of bears in a manner that endangers the public and does not apply to lawful hunting activities conducted in accordance with applicable state wildlife laws and regulations; and

WHEREAS, through proclamation of the Tennessee Fish and Wildlife Commission, it is already established that the feeding of bears within certain corporate limits is a violation of wildlife regulations; and

WHEREAS, it is the legislative intent to increase the ability of the Tennessee Wildlife Resources Agency, through partnership with local law enforcement agencies, to enforce existing wildlife regulations, in particular, the feeding of bears in a manner that is unrelated to hunting to protect public safety and preserve wildlife; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 70-1-305, is amended by adding the following as a new subdivision:

(13)

(A) Notwithstanding §§ 70-1-301(a) and 70-6-101(a), enter into agreements with local law enforcement agencies for the limited purpose of assisting an agency with the enforcement of this title, rules promulgated by the fish and wildlife commission, and proclamations passed by the fish and wildlife commission;

(B) Such agreements must be limited in scope to assisting with matters of public safety specific to human wildlife interaction such as feeding wildlife and interaction with wildlife that could cause a public safety concern. The agreements must specify the laws, rules, or proclamations the local law enforcement agency is authorized to enforce and cite;

(C) The agreements created and entered into pursuant to this subdivision (13) must require local law enforcement agencies to provide regular reports to the executive director, or the director's designee, when the authority under the agreement is exercised. Such reporting must include, but not be limited to, all details related to the citation, including the facts of the offense, and the final disposition; and

(D) This subdivision (13) does not authorize a local law enforcement agency subject to an agreement to exceed the agency's jurisdiction.

SECTION 2. Tennessee Code Annotated, Title 70, Chapter 4, Part 2, is amended by adding the following new section:

(a) Notwithstanding another law to the contrary, it is an offense to feed a black bear within the confines of an area the commission has proclaimed that feeding black bears is prohibited.

(b) Knowingly feeding a black bear in violation of subsection (a) is a Class B misdemeanor, punishable by a fine of no less than two hundred fifty dollars (\$250), before the imposition of any additional court costs or fees.

(c) Unknowingly feeding a black bear in violation of subsection (a), that occurs as a result of knowingly leaving food or garbage unsecured and otherwise accessible to black bears, is a Class B misdemeanor, punishable by:

(1) For a first offense, a written warning only; or

(2) For a second or subsequent offense, a fine of no less than two hundred fifty dollars (\$250), before the imposition of any additional court costs or fees.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts or omissions occurring on or after such date.